

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nicholas Nord Howell	Team: Squad #17	CCRB Case #: 202311490	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 12/06/2023 11:30 AM	Location of Incident: 86th Street subway station (4/5 Train platform)	18 Mo. SOL 6/6/2025	Precinct: 19
Date/Time CV Reported Thu, 12/07/2023 11:45 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 12/07/2023 11:45 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Wendy Skupien	13199	945289	MED DIV
2. PO Michele Carrieri	22763	944098	MED DIV

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Thomas Rodes	07758	953327	MED DIV

Officer(s)	Allegation	Investigator Recommendation
A . PO Wendy Skupien	Abuse: Police Officer Wendy Skupien questioned § 87(2)(b)	A . Within NYPD Guidelines
B . PO Wendy Skupien	Abuse: Police Officer Wendy Skupien refused to provide her name to § 87(2)(b)	B . Unfounded
C . PO Wendy Skupien	Abuse: Police Officer Wendy Skupien refused to provide her shield number to § 87(2)(b)	C . Unfounded
D . PO Michele Carrieri	Abuse: Police Officer Michele Carrieri took a recording of § 87(2)(b)	D . Substantiated

Case Summary

§ 87(2)(b) filed the following complaint on December 7, 2023, with the CCRB via the online intake form.

At approximately 11:30 AM on December 6, 2023, in the 86th Street 4/5/6 train subway station in Manhattan, § 87(2)(b) got into a verbal altercation with another civilian. § 87(2)(b) requested assistance in settling the dispute from PO Wendy Skupien, PO Michelle Carrieri, and PO Thomas Rodes, all of the Medical Division. The other civilian began to walk away, and PO Skupien approached § 87(2)(b) and asked him where he was going (**Allegation A: Abuse of Authority – Within NYPD Guidelines**). § 87(2)(b) then asked PO Skupien for her name and shield number and PO Skupien allegedly refused to answer § 87(2)(b) request (**Allegation B: Abuse of Authority – Unfounded; Allegation C: Abuse of Authority – Unfounded**). During the incident PO Carrieri used her personal cellphone to record § 87(2)(b) (**Allegation D: Abuse of Authority – Substantiated**).

The CCRB received one video § 87(2)(b) recorded on his cellphone during the incident (**BR 01**). The CCRB received 36 MTA surveillance videos (**BR 02**). The CCRB also received the video PO Carrieri recorded on her personal cell phone during the incident (**BR 03**). There is no additional footage of the incident.

There was no arrest or summons associated with this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Wendy Skupien questioned § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Wendy Skupien refused to provide her name to § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Wendy Skupien refused to provide her shield number to § 87(2)(b)

In his statement to the CCRB (**BR 04**) § 87(2)(b) stated that he got into a verbal dispute with another civilian inside the subway station. In response, § 87(2)(b) began to film the altercation on his cellphone. The other civilian suggested that he and § 87(2)(b) find a police officer to determine whether § 87(2)(b) was a legal resident of the United States. § 87(2)(b) agreed, and the two civilians walked toward the entrance of the station to find a police officer. Upon nearing the exit, § 87(2)(b) noticed PO Skupien, PO Carrieri, and PO Rodes standing in the lobby approximately 20 to 30 feet away. § 87(2)(b) opened the emergency exit and stood in the doorway and began to call out to the officers, saying that the other civilian had a question and that he was an “EDP” (emotionally disturbed person). The officers did not react except to look at § 87(2)(b) and the other civilian. § 87(2)(b) and the other civilian returned to the platform and the other civilian began to walk away. PO Skupien, PO Carrieri, and PO Rodes then walked onto the platform. PO Rodes and PO Carrieri walked after the other civilian and PO Skupien approached § 87(2)(b) and asked him where he was going. § 87(2)(b) responded that he was going home. § 87(2)(b) then told PO Skupien to treat him with more respect as she had ignored him when he asked for her assistance. § 87(2)(b) also asked PO Skupien why she was acting as if the incident had been his fault and PO Skupien responded that he was smirking at her. § 87(2)(b) asked PO Skupien for her name and shield. PO Skupien pointed at her shield on her uniform but did not give a verbal answer. PO Rodes and Carrieri then approached § 87(2)(b) and PO Carrieri told § 87(2)(b) that the incident was finished. § 87(2)(b) asked both PO Carrieri and PO Rodes for their names and shield numbers and they both verbally provided their information. § 87(2)(b) told PO Skupien that the other officers had verbally provided their names and shield numbers and that she should do the same. § 87(2)(b) told PO Skupien that he wanted her name and shield number to make a complaint against her, but she did not respond and left the platform via the turnstiles.

The cellphone video recorded by § 87(2)(b) during the incident (**BR 01**) addresses these allegations. There is no internal timestamp and audio begins at 00:01. At runtime 04:00, after a prolonged verbal dispute on the subway platform, a civilian asks § 87(2)(b) if he has “papers,” and

says that he will get the police to check. § 87(2)(b) responds that he will come along to help find the police. At runtime 04:50 § 87(2)(b) walks into the subway station lobby through the emergency exit door. PO Skupien, PO Carrieri, and PO Rodas are leaning against the far wall of the lobby. § 87(2)(b) says that he and the other civilian have a question and that the other civilian, whom he calls an “EDP,” needs some help. The officers look in § 87(2)(b) direction but do not otherwise respond. At runtime 05:05 § 87(2)(b) turns and steps back towards the platform. The other civilian tells § 87(2)(b) he is leaving and begins to walk away. § 87(2)(b) walks after the other civilian, who then stops, faces in the direction of the officers, and says that he is walking away from § 87(2)(b). The other civilian then walks away from § 87(2)(b) but § 87(2)(b) continues to follow him. At runtime 05:30 the other civilian calls out that § 87(2)(b) is following him. At runtime 05:48 PO Skupien, from offscreen, says, “Where are you going?” § 87(2)(b) responds that the other civilian is threatening people and PO Skupien says that § 87(2)(b) is following him. At runtime 06:00 § 87(2)(b) asks PO Skupien for her name and shield number. PO Skupien gestures to her shield and says that her shield is there. § 87(2)(b) responds that he cannot read and asks her to pronounce it. At runtime 06:20 PO Skupien turns away and asks someone off screen if the incident is resolved. § 87(2)(b) repeatedly asks PO Skupien for her name and shield number and says that she legally has to verbalize it. PO Skupien initially says she does not, but at runtime 06:30 PO Skupien says “Skupien, 13199.” However, § 87(2)(b) speaks over her while repeatedly asking for her name and shield number.

In PO Skupien’s interview with the CCRB (BR 05) she stated that on the date of the incident she had been assigned to a foot patrol detail in the subway system with PO Rodas and PO Carrieri. When § 87(2)(b) and the other civilian first approached officers, § 87(2)(b) was recording on his cellphone and “smirking.” PO Skupien knew that § 87(2)(b) was recording because of the way he was holding his phone. However, the officers did not engage because PO Skupien did not think the situation required police intervention. The civilians then walked away and a few minutes later § 87(2)(b) walked past the turnstiles again. PO Skupien noticed that § 87(2)(b) tone of voice was more serious, and he was no longer “smirking.” PO Skupien decided that the situation now required police intervention and approached § 87(2)(b). The other civilian wanted to get on the train, so officers did not stop him from leaving because the officers had not witnessed a crime and neither civilian had alleged a crime. PO Skupien only recalled asking § 87(2)(b) what was going on, which she asked to assist him with his earlier request for police intervention. In response he asked for her name and shield number, which were clearly visible on her uniform. PO Skupien also verbally provided her name and shield number.

Per *NYPD Patrol Guide 212-11 (BR 06)* a request for information, or level one encounter, is an interaction between a uniformed member or service and a civilian in which the member of service asks the civilian for information. The member of service must have an objective credible reason for approaching the civilian but does not need to have any suspicion of criminal activity. Furthermore, the objective of a request for information is not to foreground the civilian as a suspect, but to collect information.

§ 87(2)(g)

Additionally, as PO Skupien noted in the video and consistent with § 87(2)(b) recorded actions, § 87(2)(b) is seemingly following the other civilian, § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

the video that § 87(2)(b) recorded of the incident and provided to the investigation shows that PO Skupien did verbally provide her name and shield number. It is therefore recommended that **Allegation B** and **Allegation C** be **Unfounded**.

Allegation (D) Abuse of Authority: Police Officer Michele Carrieri took a recording of

§ 87(2)(b)

In his statement to the CCRB (BR 04) § 87(2)(b) stated that after he had asked PO Skupien, PO Carrieri, and PO Rodes for their names and shield number, he noticed PO Carrieri recording him using a cellphone. § 87(2)(b) knew that PO Carrieri was recording based on the way that she was holding the back of the phone to face him. § 87(2)(b) thought that PO Carrieri was using her personal cellphone because he saw a blue card holder affixed to the back of the phone. § 87(2)(b) told PO Carrieri not to delete the video footage because it was a public record. Neither PO Carrieri nor PO Rodes responded to § 87(2)(b) PO Skupien had already exited the platform back into the station lobby. Shortly after, PO Carrieri and PO Rodes also exited the platform back into the station lobby. PO Carrieri continued to record § 87(2)(b) for a few minutes until § 87(2)(b) walked down the staircase to the lower platform to board a train.

The video recorded by § 87(2)(b) during the incident (BR 01) addresses this allegation. At runtime 07:40, after § 87(2)(b) repeatedly questions officers' professionalism and conduct, PO Carrieri can be seen holding her phone vertically with the back facing § 87(2)(b). A black card holder is affixed to the back of the phone. At runtime 07:55 PO Carrieri and PO Rodes exit the platform into the station lobby. PO Carrieri is still holding her phone in the same position until she, along with PO Rodes, walks away from § 87(2)(b) at runtime 09:28.

In PO Carrieri's interview with the CCRB (BR 07) she stated that after PO Skupien approached § 87(2)(b) PO Carrieri followed after her. § 87(2)(b) then asked for PO Carrieri's shield number, which she verbally provided. PO Carrieri then began to walk away as the other civilian had left the scene, but § 87(2)(b) repeatedly yelled after the officers saying that they were not real police and asking why they were not wearing BWCs. § 87(2)(b) also trailed after the officers while filming. In response, approximately two minutes after approaching § 87(2)(b) PO Carrieri pulled out her personal cellphone and began to film § 87(2)(b) PO Carrieri stated that she began recording to have a record of the incident and to protect herself and fellow officers as she felt § 87(2)(b) was escalating the incident. PO Carrieri intended to use her department cellphone and did not realize she was using her personal cellphone until immediately after she stopped recording. PO Carrieri then alerted her Integrity Control Officer (ICO) and sent the ICO the video file. At the time of the CCRB interview the file was still on PO Carrieri's personal cellphone. However, PO Carrieri stated that the video file was corrupted and that neither she, nor her ICO, have ever been able to view the file. PO Carrieri stated that both her personal cellphone and her department cellphone are iPhones with black cases. PO Carrieri stated that her personal cellphone is an iPhone 14 and does not have a physical home button. PO Carrieri did not know the model of her department cell phone but stated that it does have a physical home button. PO Carrieri stated that she does not keep either phone in any one specific place on her person.

PO Carrieri provided the investigation with the video file she recorded during this incident (BR 03). The investigation was able to play the file, but it was one second in duration and captured only a single shot of the ground.

Per *NYPD Patrol Guide 206-03 (BR 08)* officers may not use a personal electronic device while performing duties during tour except when on meal, during an emergency, or if directed to by a competent authority.

It is undisputed that PO Carrieri recorded § 87(2)(b) and by PO Carrieri's admission she used her personal cellphone to do so. PO Carrieri recorded § 87(2)(b) in the course of police duties and was not directed to by a supervisor. § 87(2)(g)

It is therefore recommended that **Allegation D** be **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)

- PO Skupien has been a member of service for sixteen years and has been a subject in one other CCRB complaint and one other allegation, which was not substantiated. § 87(2)(g)
- PO Carrieri has been a member of service for seventeen years and has been a subject in three other CCRB complaints and four other allegations, of which one was substantiated.:
 - 201310161 involved a substantiated allegation of a retaliatory summons against PO Skupien. The Board recommended charges and the NYPD imposed APU not guilty.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On May 22, 2024, a FOIL request was submitted online with the New York City Office of the Comptroller for any Notices of Claim filed in regard to this incident, the results of which will be added to the case file upon receipt (BR 10).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 17

Investigator:	<u>Nicholas Nord Howell</u>	<u>Inv. Nord Howell</u>	<u>05/22/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Benjamin Shelton</u>	<u>AIM Benjamin Shelton</u>	<u>05/22/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date